

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 20-12

NNABUGWU CHINEDU ANDREW, AVERS LOGISTICS LTD. and CJ DELUZ NIGERIA LTD.,

Complainants,

— vs. —

MARINE TRANSPORT LOGISTICS, INC., ALLA SOLOVYEVA and RAYA BAKHIREV,

Respondents.

**COMPLAINANTS’ MOTION FOR RECONSIDERATION OF JULY 2, 2021 ORDER
DENYING COMPLAINANTS’ JUNE 17, 2021 MOTION FOR RECONSIDERATION
OF JUNE 11, 2021 ORDER REQUIRING BRIEFING AND FOR OTHER RELIEF,
AND MAY 6, 2021 MOTION TO COMPEL**

Pursuant to Rules 69, 71 and 150 of the Federal Maritime Commission’s (the “Commission”) Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), Complainants, through their Counsel, Marcus A. Nussbaum, Esq., respectfully submit this Motion for Reconsideration of the Presiding Officer’s July 2, 2021 Order which denied Complainants’ June 17, 2021 Motion for Reconsideration of the Presiding Officer’s June 11, 2021 Order Requiring Briefing and for Other Relief and which *also* denied Complainants’ May 6, 2021 Motion to Compel. Upon such reconsideration, complainants additionally request that pursuant to Rule 150(b), that the Presiding Officer exercise her discretion and upon her own initiative, make such orders in regard to MTL’s failure to provide such discovery “...as are just...”. At this juncture, and upon compelling MTL to produce the documents described herein, it would be “just” for the Presiding Officer to Order MTL to pay attorneys’ fees incurred by complainants in order to obtain these simple shipping documents, germane to each and every single shipping case currently before the Federal Maritime Commission, both relevant to these proceedings and which respondents should have produced from day one of discovery in this matter.

As a preliminary matter, the undersigned counsel simply states that it is deeply troubling to see that respondents have confused the Presiding Officer into misunderstanding the nature of this proceeding and have led the Presiding Officer to issue erroneous rulings which stand in stark and marked contrast to well-established precedent of the Commission as set forth below on the issues of: 1) the timing of motions for reconsideration; and 2) the relevancy of the documents and the necessity for an Order compelling their production together with compensation for complainants in the form of attorneys' fees and/or sanctions.

Sadly, and due to MTL having created a three-ring circus on the issue of their basic obligation to comply with simple discovery demands, complainants are simply left with no choice but to take the Presiding Officer 'by the hand' and lead her away from the Big Top Tent so that complainants may proceed forward with the relevant discovery in hand. This will avoid the need for this matter to proceed to Exceptions (and avoid the unnecessary expenditure of the Commission's resources, as well as avoid expenses incurred by complainants therefrom) due to a situation where the Presiding Officer has now precluded the production of relevant documents needed by complainants in order to prove their claims, and then subsequently finds in the Initial Decision that complainants have failed to meet their burden of proof in establishing the five elements required in order to maintain a cause of action under 46 U.S.C § 41102(c) - - that situation would run afoul of the FMC's mission to protect the shipping public from unfair and deceptive practices.

I. RELEVANT PROCEDURAL HISTORY

In order to avoid what would have been a voluminous filing with an extended repetition of the procedural history in this matter, complainants incorporate by reference in their entirety the procedural histories set forth in detail in complainants' February 22, 2021 Motion to Compel and For Other Relief (Document 18) and complainants' June 17, 2021 Motion for

Reconsideration of Order on Motions to Compel and Order Requiring Briefing, and for Other Relief (Document 24).

In addition to the foregoing, we add that on July 2, 2021, the Presiding Officer issued an Order Denying Complainants' June 17, 2021 Motion for Reconsideration (Document 26) on the basis that the motion was allegedly untimely.

II. ARGUMENT

Complainants June 17, 2021 Motion for Reconsideration Was Timely Pursuant to the Commission's Rules of Practice and Procedure and Well-Established Precedent

The July 2, 2021 Order Denying Complainants' June 17, 2021 Motion for Reconsideration explains as follows:

Complainants' motion for reconsideration is untimely and thus procedurally improper. As Complainants acknowledge, the discovery they are seeking "has been sought all along" and the motion to compel has already been ruled upon. At this stage of the proceeding, the case has been pending for almost a year, discovery is over, and the parties have been ordered to file their briefs.

On the issue of the timeliness of complainants' Motion for Reconsideration, which may have been brought *at any time prior to the issuance of a final judgment in this matter*, the Presiding Officer is respectfully referred to the August 13, 2010 Opinion Memorandum and Order on Motions For Reconsideration and other relief, by former Chief ALJ Guthridge (before whom the undersigned had the privilege of practicing on other matters) in the matter of *Mitsui O.S.K. Lines Ltd. v. Global Link Logistics, Inc., et al.* (FMC Docket No.: 09-01) (2010 FMC LEXIS 43). In that Opinion, Judge Guthridge explains the distinction between a *Petition for Reconsideration* brought under Rule 261 of the Commission's Rules of Practice and Procedure (which must be brought within thirty [30] days after issuance of a final decision or order by the Commission) and a *motion* for reconsideration of an interlocutory order.

Specifically, in *Mitsui, supra*, ALJ Guthridge explains that while Rule 261 is comparable to the Federal Rules of Civil Procedure ("FRCP") Rule 60(b) (which governs grounds for relief

from a final judgment, order or proceeding) that under the FRCP, reconsideration of an interlocutory order is governed by FRCP Rule 54(b). *Id.* Judge Guthridge also explained that since there is no Commission Rule comparable to FRCP Rule 54(b) that pursuant to the Commission's Rules of Practice and Procedure Rule 12, that the FRCP is followed in the absence of a specific rule by the Commission, explaining that: "[a] presiding officer may properly reconsider and reverse interlocutory rulings made prior to the initial decision, whether those rulings are made by him or her or by a previously assigned administrative law judge". *Id.* (citing *Tractors and Farm Equipment Ltd. v. Waterman Steamship Corp.*, 21 S.R.R. 1293, 1295 n.9 [FMC 1982]; *Knight v. Lane*, 228 U.S. 6 [1912]; *Bookman v. United States*, 435 F.2d 1263 [Ct. Cl. 1972]; *Faircrest Site Opposition v. Levi*, 418 F. Supp. 1099 [N.D. Ohio 1976]). *See, also, Mistui, supra* at p. 12 (Rule 54(b) allows a court to reconsider its interlocutory decisions ***at any time prior to a final judgment***) (emphasis added).

Accordingly and based upon the case law set forth above, there is nothing untimely nor is there anything procedurally improper regarding Complainants' June 17, 2021 Motion for Reconsideration.

The July 2, 2021 Order also inappropriately attempts to place the blame upon complainants for any delays in this matter, explaining that with regard to complainants:

“...the discovery they are seeking “has been sought all along” and the motion to compel has already been ruled upon. At this stage of the proceeding, the case has been pending for almost a year, discovery is over...”

Complainants agree with the Presiding Officer that the discovery complainants are seeking has been sought all along, and add that such discovery has *still not yet been produced* due to the dilatory tactics of respondents which have frustrated complainants ability to obtain the documents requested, and also due to respondents' apparent success in ‘bamboozling’ the Presiding Officer into mistakenly believing that that respondents have complied with complainants' document demands. We add here that the fact that discovery is now closed should

be of *absolutely no moment* in that the procedural history in this matter speaks for itself and clearly demonstrates complainants' efforts to obtain the requested documents *long before the close of discovery in this matter*.

With regard to the Presiding Officer's statement that the case has been pending for almost a year, complainants simply ask, whose fault is that? A brief review of the docket in this matter indicates that the dates for the filing of briefs in this matter have been extended multiple times, *solely* as a result of MTL's failure to provide the very documents needed by complainants in order to file their Proposed Findings of Fact and Conclusions of Law and fully brief the Presiding Officer with regard to their claims in this matter.

MTL Failed to Comply With Its Obligations to Produce Relevant Documents in This Matter

In order to avoid what would have otherwise been a voluminous brief at this time which simply repeats and rehashes MTL's various failures to Comply with specific document demands, complainants incorporate by reference in their entirety the legal argument set forth in detail in complainants' February 22, 2021 Motion to Compel and For Other Relief (Document 18) and complainants' June 17, 2021 Motion for Reconsideration of Order on Motions to Compel and Order Requiring Briefing, and for Other Relief (Document 24).

As stated in Complainants' June 17, 2021 Motion, while in some instances respondents agreed to produce the documents requested in their responses to complainants document demands, the documents attached to their responses were not the above listed documents, and did not contain copies of the Ocean Liner Bills of Lading, MTL House Bills of Lading, Dock Receipts, Shipper's Export Declarations filed online with U.S. Customs and the Department of Commerce and through the AES system, and invoices for ocean freight (together with proof of when and to whom they were presented and how they were paid).

The Documents Sought Are Part of the Seventeen (17) Automobiles at Issue in This Matter

As stated in Complainants' June 17, 2021 Motion, complainants still have not received the Ocean Liner Bills of Lading, Dock Receipts¹, MTL House Bills of Lading, Shipper's Export Declarations filed online through AES, and invoices for ocean freight (together with proof of when and to whom they were presented and how they were paid) for the following four automobiles at issue in the Complaint:

MAKE	MODEL	YEAR	VIN ENDING IN
Lexus	GS 300	2006	6993
Toyota	Avalon	2007	5968
Toyota	Venza	2010	0283
Toyota	Camry	2004	2288

With regard to the single container (containing three automobiles together with two automobiles which had been cut in half, and five pallets with goods), that container was listed on page "2" of the parties Joint Status Report and on the MSC Bill of Lading and MTL Bill of Lading (attached to the Complaint as Appendix "B") and also identified in paragraphs "141-144" and "169-171" of the Complaint, for which complainants seek only the copies of the AES declarations, proofs of filing, printouts and/or confirmations which relate to the automobiles contained therein.²

The discovery sought by complainants herein and which was not produced by respondents is directly relevant to the allegations in the complaint identified above. Complainants' requests for the Ocean Liner Bills of Lading, MTL House Bills of Lading, Shipper's Export Declarations

¹ We note here that on June 21, 2021 MTL produced only the Dock Receipt for the 2004 Toyota Camry VIN ending in 2288 and that with regard to the vehicle with VIN number ending in 0283, complainants only possess a photo containing a half of the page of the Dock Receipt and require the full page for that car and the two other cars listed here. We additionally note here that complainants are in possession of the Manifest from Ocean Liner Morning Crystal 18MR01 (attached to the Complaint as Appendix "B", CX0003) for the three cars listed above with VIN Nos.: ending in 6993, 5968 and 0283.

² As set forth in the parties' Joint Status Report, it was explained to counsel for MTL via email that even without the Presiding Officer's Order of May 6, 2021, the AES records must be produced upon demand of the shipper pursuant to Section 30.3 of the Foreign Trade Regulations and the Shipping Act of 1984 as amended by the Ocean Shipping Reform Act of 1998.

filed online with U.S. Customs and the Department of Commerce and through the Automated Export System (“AES”), and invoices for ocean freight (together with proof of when and to whom they were presented and how they were paid) and other charges for the seventeen (17) automobiles at issue in this matter were identified in the May 6, 2021 Order on Motions to Compel at page “3” thereof (Demand Nos.: 1 through 8).

Production of the AES records, Ocean Liner Bills of Lading, MTL House Bills of Lading, Dock Receipts and Invoices for Ocean Freight and Proof of How and When They Were Paid Is Required In Order To Establish The Five Elements Required In Order To Maintain A Cause Of Action Under 46 U.S.C § 41102(c)

In the matter at bar, it is respectfully submitted that the issue here is not whether or not MTL’s documents are ‘non-responsive’ but rather that the Ocean Liner Bills of Lading, MTL House Bills of Lading, Dock Receipts, AES Declarations and invoices for ocean freight (together with proof of when and to whom they were presented and how they were paid) *were never produced in this matter* - - this is not a mere “disagreement” over factual issues, but rather, while in some instances respondents agreed to produce the documents requested in their responses to complainants document demands, the documents attached to their responses were not the above listed documents.

2004 Toyota Camry VIN Ending in 2288

Without rehashing Complainants' June 17, 2021 Motion, which is incorporated herein, complainants additionally ask the Presiding Officer to note that in opposition to complainants' June 17, 2021 Motion and long after discovery was closed in this matter, on June 21, 2021 (Document 25) MTL graciously decided to ‘throw us a bone’ and annexed to its opposition as MTL’s Exhibit “3” a Dock Receipt for the 2004 Toyota Camry VIN ending in 2288, which clearly identifies MTL as the forwarding agent for this shipment. The import of this document, produced now ***for the first time*** is that MTL is also in possession of the Ocean Liner Bill of Lading, MTL House Bill of Lading, and AES Shipper’s Export Declaration for this shipment and

has not produced them. MTL could simply have ‘pressed the button’ on its computers in order to print these documents and provide them.³

2010 Toyota Venza VIN Ending in 0283

On page “3” of MTL’s opposition to Complainants’ June 17, 2021 Motion, Mr. Pogil argues that with regard to the 2010 Toyota Venza VIN ending in 0283, the “...vehicle was released to Segzymoore Auto Lounge...” and identifies MTL document entitled “Cargo Release” annexed to Mr. Pogil’s opposition papers as Exhibit “2”. Mr. Pogil then argues that complainants were free to subpoena the documents from Segzymoore but do not explain why they did not...”. At this juncture, we note that it requires a temporary suspension of belief in reality in order for MTL and its counsel to argue in good faith that Segzymoore Auto Lounge, located in Nigeria and outside this Commission’s jurisdiction and enforcement would ever respond to a subpoena. Conspicuously absent from MTL’s argument regarding this car is any explanation as to why MTL refuses to produce the Ocean Liner Bill of Lading, MTL House Bill of Lading, full page copy of the MTL Dock Receipt⁴, and AES Shipper’s Export Declaration for this shipment. MTL is clearly in possession of these documents.

Container #TCNU 2645133 MTL BOL#41677 Annexed as Exhibit “B” to the Complaint

With regard to the single container (containing three automobiles together with two automobiles which had been cut in half, and five pallets with goods) MTL BOL#41677 annexed as Exhibit “B” to the Complaint, Mr. Pogil argues on pages “3” and “4” that complainants have some ulterior motive in seeking the AES shipper’s export declaration for this container. On this issue we provide the Presiding Officer with two alternate versions of MTL’s Dock Receipt for the cars in this container, both annexed hereto as Appendix “A”. The first Dock Receipt (Bates

³ We note here that MTL’s Exhibit “3” purported Dock Receipt raises issues as to its authenticity in that the version produced by MTL (without any stamps, proof of receipt by the receiving port of loading) is missing crucial information required in order for this document to be used during the export process which is also why the corresponding ocean Liner Bill of Lading, MTL House Bill of Lading, and AES Shipper’s Export Declaration for this shipment are required.

⁴ See footnote No.: 1.

No.: CX002) was annexed as Appendix “B” to Complainants’ Complaint and lists CJ Deluz Nigeria Limited as the Exporter and Nnabugwu Chinedu Andrew (in Nigeria) with a USA address of 63 New Hook Road, Bayonne NJ 07002 as the Consignee. The Second Dock Receipt, produced by respondents in discovery in this matter, lists MTL as the Exporter and ALJ Forwarders Services Limited as the Consignee. Both Dock Receipts have the same AES ITN filing number associated with a AES Shipper’s Export Declaration (X20180411653898). All other information on both Dock Receipts is the same - - given that complainants have previously established MTL’s regular practice of creating false documents for use in these proceedings, it requires no mental jumping jacks to conclude that one of these two Dock Receipts for this shipment is not true and accurate, and maybe, that MTL will print a third version and annex that to its Findings of Fact and Conclusions of Law. In any event, it is impossible to present an automobile or container for export to the ocean terminal authorities using multiple dock receipts containing different information for the same container.

In the absence of the production of the AES Shipper’s Export Declaration for this container (which is filed with the U.S. Federal Export Regimes under penalty of perjury), complainants ask how the Presiding Officer will be able to decide who were the true exporters and consignees for this shipment and which is the true version of the Dock Receipt? Can this simply be decided by the flip of a coin? This is why the entire puzzle must be completed by the production of the shipping documents requested herein.

In closing, complainants note for the Presiding Officer that complainants live and work in a third-world country under difficult circumstances and with limited resources. MTL’s behavior throughout this litigation was focused solely on frustrating and eroding complainants ability to proceed with this matter - - it is time to address this issue, which is why the Presiding Officer is asked to finally issue an Order as is “just” pursuant to Rule 150(b), order the production of the documents sought herein, award attorneys’ fees to complainants for expenses incurred in seeking

this discovery and adjust the briefing schedule accordingly for the filing of Findings of Fact and Conclusions of Law.

CONCLUSION

Accordingly, for the reasons set forth above, complainant requests that the instant motion be granted in its entirety, and that upon reconsideration: (1) grant Complainants' June 17, 2021 Motion for Reconsideration of the Presiding Officer's June 11, 2021 Order Requiring Briefing and for Other Relief; (2) revise the May 6, 2021 Order on Motions to Compel and June 11, 2021 Order Requiring Briefing; (3) compel the production of the shipping documents for the seventeen (17) automobiles at issue in this matter, such as Ocean Liner Bills of Lading, MTL House Bills of Lading, AES Declarations, Dock Receipts, and invoices for ocean freight (together with proof of when and to whom they were presented and how they were paid); (4) extend the complainants time to file their Brief with Proposed Findings of Fact and Appendix by at least 27 days from the date that MTL produces the documents requested herein (in order to maintain the same amount of time from the date of the June 11, 2021 Order Requiring Briefing to the date that complainants' brief was originally due); (5) sanction respondents as appropriate; and (6) grant such other and further relief as the Presiding Officer deems just and proper

Dated: July 30, 2021
Brooklyn, NY

Respectfully Submitted,

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANTS' MOTION FOR RECONSIDERATION OF JULY 2, 2021 ORDER DENYING COMPLAINANTS' JUNE 17, 2021 MOTION FOR RECONSIDERATION OF JUNE 11, 2021 ORDER REQUIRING BRIEFING AND FOR OTHER RELIEF, AND MAY 6, 2021 MOTION TO COMPEL and APPENDIX** upon Respondents' Counsel at the following address:

Garry Pogil, Esq.
112 West 34 Street, 18 Floor
New York, NY 10120

by email to: garry.pogil@gmail.com.

/s/ Marcus Aurelius Nussbaum
Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Fax: 347-572-0439
Attorney for Complainants
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
July 30, 2021

APPENDIX “A”



Marine Transport Logistic, Inc.

FMC: 018709N

DOCK RECEIPT

2. EXPORTER (Principal or seller-licensee and address including ZIP Code) CJ DELUZ NIGERIA LIMITED 166 LAWANSON ROAD Surulere, LAGOS. NIGERIA ZIP CODE		5. DOCUMENT NUMBER 038CHI1556516		5a. B/L NUMBER HBOL41677	
3. CONSIGNEE TO NNABUGWU CHINEDU ANDREW 63 New Hook Rd, Tel: 08032733086, Bayonne, NJ 07002. USA		7. FORWARDING AGENT (Name and address - references) Marine Transport Logistic Inc 63 New Hook Rd, Bayonne NJ 07002			
4. NOTIFY PARTY / INTERMEDIATE CONSIGNEE (Name and address) ALJ FORWARDERS SERVICES LIMITED 18 PAYNE CRESCENT, Tel: 234 806 311 2482, APAPA. NIGERIA		8. POINT (STATE) OF ORIGIN OR FTZ NUMBER			
12. PRE-CARRIAGE BY		13. PLACE OF RECPT BY PRE-CARRIER		9. DOMESTIC ROUTING/EXPORT INSTRUCTIONS	
14. EXPORTING CARRIER MSC SPAIN / NU818E		15. PORT OF LOADNG/EXPORT New York		10. LOADING PIER/TERMINAL	
16. FOREIGN PORT OF UNLOADING (Vessel and air only) Tincan/Lagos		17. PLACE OF DELIVERY BY ON-CARRIER		11. TYPE OF MOVE Vessel, Containerized	
11a. CONTAINERIZED (Vessel only) ☒ Yes ☐ No					
MARKS AND NUMBERS (18)		NUMBER OF PACKAGES (19)		DESCRIPTION OF COMMODITIES (20)	
GROSS WEIGHT (Kilos) (21)		MEASUREMENT (22)			
CNT: TCNU2645133 SEAL: 6151319 WR 147122		1 VEH		40 Ft. High Cube	
WR 135634		1 VEH		2010 LEXUS RX 350 BASE VIN:2T2BK1BA8AC039422	
WR 135571		1 VEH		2011 TOYOTA VENZA BASE VIN:4T3ZK3BB2BU041102	
WR 145862		1 VEH		2008 HONDA ACCORD EX VIN:1HGCP26728A103906	
WR 141946		1 VEH		2009 TOYOTA VENZA BASE VIN:4T3ZK11A79U017319	
				2008 LEXUS RX 350 BASE VIN:2T2HK31U58C080845	
				AES ITN:X20180411653898	
Carrier has a policy payment, solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the United States Shipping Act: 1984 as amended. DECLARED VALUE READ CLAUSE 29 HEREOF CONCERNING EXTRA FREIGHT AND CARRIER'S LIMITATIONS OF LIABILITY.					

DELIVERED BY:

LIGHTER
TRUCK

ARRIVED DATE TIME

UNLOADED DATE TIME

CHECKED BY

PLACED IN SHIP ON DOCK LOCATION
CX0002

RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO ALL THE TERMS OF THE UNDERSIGNED'S REGULAR FORM OF DOCK RECEIPT AND BILL OF LADING WHICH SHALL CONSTITUTE THE CONTRACT UNDER WHICH THE GOODS ARE RECEIVED, COPIES OF WHICH ARE AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED AT ANY OF ITS OFFICES.

Important information regarding U.S. customs inspection procedures:

Any and all shipments arriving to or departing from the USA are subject to and can be inspected by the U.S. Customs and Border Protection. U.S. Customs randomly pulls containers for inspection at the port for security & safety reasons. The inspection can be done either at the terminal by x-ray, open visual inspection, or by transferring the container to a bonded warehouse and doing a total de-vanning of the container for inspection of contents.

All charges incurred from the ocean line and/or the bonded warehouse as a result of the U.S. Customs inspection is the total responsibility of the shipper. If these charges are not paid within the given time frame, then the shipper can incur additional storage fees and penalties, with the possibility of their cargo being seized.

Marine Transport Logistics is not responsible for any of the charges resulting from U.S. Customs exams because Marine Transport Logistics is acting on behalf of the shipper, and they do not hold title or ownership of the shipment.

BY RECEIVING CLERK

DATE Apr/10/2018



Marine Transport Logistic, Inc.

FMC: 018709N

DOCK RECEIPT

2. EXPORTER (Principal or seller-licensee and address including ZIP Code) Marine Transport Logistic, Inc. 63 New Hook Rd, Tel: 201-858-8600, Bayonne, NJ 07002. USA ZIP CODE		5. DOCUMENT NUMBER 038CHI1556516		5a. B/L NUMBER EO-50566					
3. CONSIGNEE TO ALJ FORWARDERS SERVICES LIMITED 18 PAYNE CRESCENT, Tel: 234 806 311 2482, APAPA. NIGERIA		7. FORWARDING AGENT (Name and address - references) Marine Transport Logistic Inc 63 New Hook Rd, Bayonne NJ 07002							
4. NOTIFY PARTY / INTERMEDIATE CONSIGNEE (Name and address)		8. POINT (STATE) OF ORIGIN OR FTZ NUMBER							
12. PRE-CARRIAGE BY		13. PLACE OF RECEIPT BY PRE-CARRIER		9. DOMESTIC ROUTING/EXPORT INSTRUCTIONS					
14. EXPORTING CARRIER MSC SPAIN / NU818E		15. PORT OF LOADING/EXPORT New York		10. LOADING PIER/TERMINAL					
16. FOREIGN PORT OF UNLOADING (Vessel and air only) Tincan/Lagos		17. PLACE OF DELIVERY BY ON-CARRIER		11. TYPE OF MOVE Vessel, Containerized					
11a. CONTAINERIZED (Vessel only) ☒ Yes ☐ No									
MARKS AND NUMBERS (18)		NUMBER OF PACKAGES (19)		DESCRIPTION OF COMMODITIES (20) <i>in Schedule B detail</i>		GROSS WEIGHT (Kilos) (21)		MEASUREMENT (22)	
CNT: TCNU2645133 SEAL: 6151319 WR 147122		1 VEH		40 Ft. High Cube		8,957.54 Kg		2,566.36 ft³	
WR 135634		1 VEH		2010 LEXUS RX 350 BASE VIN:2T2BK1BA8AC039422		2,045.70 Kg		534.65 ft³	
WR 135571		1 VEH		2011 TOYOTA VENZA BASE VIN:4T3ZK3BB2BU041102		1,755.40 Kg		520.08 ft³	
WR 145862		1		2008 HONDA ACCORD EX VIN:1HGCP26728A103906		1,545.84 Kg		474.45 ft³	
WR 141946		1		Vehicle 2009 TOYOTA VENZA BASE V#4T3ZK11A79U017319		1,755.40 Kg		520.08 ft³	
				Vehicle 2008 LEXUS RX 350 BASE V#2T2HK31U58C080845		1,855.19 Kg		517.10 ft³	
				AES ITN:X20180411653898					
				EXPRESS RELEASE Batteries Disconnected, Fuel Tank(s) Drained					
Carrier has a policy payment, solicitation, or receipt of any rebate, directly or indirectly, which would be unlawful under the United States Shipping Act: 1984 as amended. DECLARED VALUE READ CLAUSE 29 HEREOF CONCERNING EXTRA FREIGHT AND CARRIER'S LIMITATIONS OF LIABILITY.									

DELIVERED BY:

LIGHTER TRUCK _____

ARRIVED DATE _____ TIME _____

UNLOADED DATE _____ TIME _____

CHECKED BY _____

PLACED IN SHIP ON DOCK LOCATION _____

RECEIVED THE ABOVE DESCRIBED GOODS OR PACKAGES SUBJECT TO ALL THE TERMS OF THE UNDERSIGNED'S REGULAR FORM OF DOCK RECEIPT AND BILL OF LADING WHICH SHALL CONSTITUTE THE CONTRACT UNDER WHICH THE GOODS ARE RECEIVED, COPIES OF WHICH ARE AVAILABLE FROM THE CARRIER ON REQUEST AND MAY BE INSPECTED AT ANY OF ITS OFFICES.
Important information regarding u.s. customs inspection procedures:
Any and all shipments arriving to or departing from the usa are subject to and can be inspected by the u.s. customs and border protection. u.s. customs randomly pulls containers for inspection at the port for security & safety reasons. the inspection can be done either at the terminal by x-ray, open visual inspection, or by transferring the container to a bonded warehouse and doing a total de-vanning of the container for inspection of contents.
All charges incurred from the ocean line and/or the bonded warehouse as a result of the u.s. customs inspection is the total responsibility of the shipper. if these charges are not paid within the given time frame, then the shipper can incur additional storage fees and penalties, with the possibility of their cargo being seized.
Marine Transport Logistics is not responsible for any of the charges resulting from u.s. customs exams because Marine Transport Logistics is acting on behalf of the shipper, and they do not hold title or ownership of the shipment

BY _____
RECEIVING CLERK

DATE Apr/10/2018